

# GENERAL MUTUAL NONDISCLOSURE AGREEMENT

OSai Work Hub | Version 1.0

**DRAFT FOR BUSINESS-OWNER AND QUALIFIED-COUNSEL REVIEW - NOT FOR SIGNATURE**

This General Mutual Nondisclosure Agreement (the “**Agreement**”) is entered into as of the date of the last signature below (the “**Effective Date**”) by and between [INSERT FULL LEGAL ENTITY NAME AND ENTITY TYPE], doing business as OSai, with an address at [INSERT ADDRESS] (“**OSai**”), and the person or entity identified as the other party in the signature block (“**Member**”). OSai and Member are each a “**Party**” and together the “**Parties.**”

## 1. Purpose

The Parties wish to evaluate, discuss, or pursue a possible business, product, technology, consulting, venture, investment-readiness, beta, or other collaborative relationship involving OSai or its projects (the “**Purpose**”). In connection with the Purpose, either Party may disclose Confidential Information to the other. This Agreement establishes the baseline confidentiality obligations for information made available through the OSai work hub or related discussions. A project-specific agreement may impose additional or different requirements.

## 2. Confidential Information

“**Confidential Information**” means nonpublic information disclosed by or on behalf of a Party (the “**Disclosing Party**”) to the other Party (the “**Receiving Party**”), before or after the Effective Date, in any form or medium, that:

- is marked or identified as confidential or proprietary;
- is made available in an area of the OSai work hub labeled or controlled as protected, General NDA, project NDA, beta, or internal access;
- is disclosed under circumstances in which a reasonable person would understand that the information is confidential; or
- by its nature or context reasonably should be understood to be confidential.

Confidential Information includes, as applicable, concepts, inventions, product and venture plans, prototypes, designs, source code and software, algorithms, models, datasets, research, specifications, technical information, security information, trade secrets, know-how, business methods, pricing, forecasts, financial information, fundraising or investment-readiness materials, customer and supplier information, marketing plans, agreements, project materials, videos, decks, milestones, beta builds, feedback, and the existence or substance of nonpublic discussions between the Parties.

For oral or visual disclosures not otherwise reasonably understood to be confidential, the Disclosing Party should identify the information as confidential when disclosed and summarize or confirm its confidential nature in writing within thirty (30) days. Failure to provide that confirmation does not remove protection from information that otherwise satisfies this Section.

### 3. Exclusions

Confidential Information does not include information that the Receiving Party can demonstrate through contemporaneous written records:

1. was lawfully known to the Receiving Party without a duty of confidentiality before disclosure by the Disclosing Party;
2. becomes publicly available through no breach of this Agreement or other wrongful act by the Receiving Party or its Representatives;
3. is lawfully received from a third party without a duty of confidentiality and without knowledge that the third party obtained or disclosed it unlawfully; or
4. is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

A combination of information is not excluded merely because individual elements are public or already known unless the combination and its operating principles are also public or already known without a duty of confidentiality.

### 4. Use and Protection

The Receiving Party will:

1. use Confidential Information solely for the Purpose and not for any unauthorized commercial, competitive, personal, or other purpose;
2. protect Confidential Information with at least reasonable care and no less than the care used to protect its own information of similar sensitivity;
3. disclose Confidential Information only to its employees, officers, directors, professional advisers, contractors, and controlled affiliates ("**Representatives**") who need to know it for the Purpose and are bound by confidentiality obligations at least as protective as this Agreement;
4. remain responsible for a breach of this Agreement by its Representatives, except to the extent prohibited by applicable law;
5. not copy, download, reproduce, transmit, publish, scrape, record, reverse engineer, decompile, disassemble, or otherwise exploit Confidential Information except as reasonably necessary and expressly authorized for the Purpose; and
6. promptly notify the Disclosing Party after discovering any unauthorized access, use, or disclosure and reasonably cooperate in limiting further harm.

The Receiving Party may not upload Confidential Information to a public or consumer artificial-intelligence service, use it to train or improve any model or dataset, or permit a service provider to retain it for unrelated purposes unless the Disclosing Party gives prior written authorization and appropriate contractual safeguards are in place.

### 5. Required Disclosure

If the Receiving Party or a Representative is legally compelled to disclose Confidential Information, the Receiving Party may make the required disclosure provided that, to the extent legally permitted, it:

1. gives the Disclosing Party prompt written notice;

2. reasonably cooperates, at the Disclosing Party's expense, with efforts to seek a protective order or other remedy; and
3. discloses only the portion legally required while using reasonable efforts to obtain confidential treatment.

Nothing in this Agreement prohibits a disclosure protected by applicable whistleblower, anti-retaliation, securities, employment, or other law, or prevents a person from communicating with or participating in an investigation or proceeding conducted by a government agency.

## 6. Ownership; No License

As between the Parties, the Disclosing Party retains all right, title, and interest in its Confidential Information. No license or other intellectual-property right is granted by this Agreement except the limited right to use Confidential Information for the Purpose. Neither Party is obligated to disclose information, proceed with a transaction or relationship, or enter into any further agreement. Each Party may independently pursue opportunities, provided it does not breach this Agreement or misuse the other Party's Confidential Information.

## 7. No Warranty

Confidential Information is provided **"as is."** Except as stated in a later definitive written agreement, the Disclosing Party makes no representation or warranty, express or implied, about the accuracy or completeness of Confidential Information. The Disclosing Party is not liable for the Receiving Party's use of or reliance on Confidential Information, except to the extent liability cannot legally be limited.

## 8. Return or Destruction

Upon written request, the Receiving Party will promptly stop using and return or destroy the Disclosing Party's Confidential Information, including reasonably accessible copies, and confirm completion in writing if requested. The Receiving Party may retain:

1. one archival copy solely for legal, compliance, insurance, or dispute purposes; and
2. copies in routine backups that cannot reasonably be isolated or deleted,

provided that retained information remains protected under this Agreement and is not accessed except for the permitted retention purpose or ordinary disaster recovery.

Revocation or expiration of OSai work hub access does not end obligations that survive under this Agreement.

## 9. Term and Survival

This Agreement begins on the Effective Date and continues for three (3) years unless a Party ends it earlier by written notice. Termination does not affect information disclosed before termination.

For Confidential Information that is not a trade secret, the obligations in Sections 4, 5, and 8 continue for three (3) years after the applicable disclosure. For information that qualifies as a trade secret under applicable law, those obligations continue for as long as the information remains a trade secret through no act or omission of the Receiving Party or its Representatives. Sections 6, 7, 10, 11, 12, and 13 survive as necessary to give them effect.

## 10. Remedies

The Parties acknowledge that unauthorized use or disclosure of Confidential Information may cause harm that cannot be adequately remedied by money damages alone. Subject to applicable law, the injured Party may seek appropriate injunctive or equitable relief, in addition to any other available remedies, without waiving the requirement to prove entitlement to that relief. **[COUNSEL TO CONFIRM WHETHER A BOND WAIVER IS APPROPRIATE.]**

## 11. Protected Trade Secret Disclosures

Under 18 U.S.C. § 1833(b), an individual will not be held criminally or civilly liable under federal or state trade-secret law for disclosing a trade secret (a) in confidence to a federal, state, or local government official, directly or indirectly, or to an attorney, solely to report or investigate a suspected legal violation; or (b) in a complaint or other document filed under seal in a lawsuit or other proceeding. An individual suing an employer for retaliation based on reporting a suspected legal violation may disclose the trade secret to the individual's attorney and use it in the proceeding if any filing containing the trade secret is made under seal and the information is not otherwise disclosed except by court order. For this notice, **"employee"** includes a contractor or consultant as provided by the statute.

## 12. Governing Law; Venue

This Agreement is governed by the laws of **[INSERT STATE/COUNTRY]**, without regard to conflict-of-laws rules. Subject to any mandatory law, the state and federal courts located in **[INSERT COUNTY, STATE/COUNTRY]** will have exclusive jurisdiction, and each Party consents to their personal jurisdiction and venue. **[COUNSEL TO CONFIRM GOVERNING LAW, VENUE, AND WHETHER A DISPUTE-RESOLUTION PROCESS SHOULD APPLY.]**

## 13. General

**Entire agreement and priority.** This Agreement is the complete agreement between the Parties concerning its subject matter and supersedes prior or contemporaneous discussions on that subject. A later project-specific nondisclosure agreement, services agreement, beta agreement, or other signed agreement controls to the extent it expressly conflicts with this Agreement for its stated subject matter. The OSai Work Hub Terms of Use govern use of the hub but do not narrow confidentiality obligations stated here.

**Amendment and waiver.** Any amendment or waiver must be in a writing signed by authorized representatives of both Parties. A waiver on one occasion is not a waiver on another.

**Assignment.** Neither Party may assign this Agreement without the other Party's prior written consent, except to an affiliate or in connection with a merger, reorganization, change of control, or sale of substantially all assets relevant to this Agreement, provided the assignee assumes the assigning Party's obligations in writing. Any other attempted assignment is void to the extent permitted by law.

**Severability.** If a provision is held unenforceable, it will be enforced to the maximum lawful extent or modified only as necessary, and the remaining provisions will remain effective.

**Notices.** Legal notices under this Agreement must be in writing and delivered by personal delivery, nationally recognized overnight courier, certified mail, or email with confirmation of receipt to the addresses in the signature block or to an updated address given by notice.

**No agency or third-party beneficiaries.** This Agreement does not create a partnership, joint venture, employment, fiduciary, or agency relationship. There are no third-party beneficiaries, except that Representatives may be protected as permitted by the terms that apply to them.

**Counterparts and electronic signatures.** This Agreement may be signed in counterparts, each of which is deemed an original and all of which together form one instrument. Electronic records and signatures, including signatures completed through DocuSign or another agreed provider, are intended to have the same effect as originals. Each Party should receive or be able to retain an accurate copy of the completed Agreement.

## Signatures

By signing, each signatory represents that the signatory has authority to bind the identified Party and agrees to this Agreement as of the Effective Date.

### OSai

Legal entity: [INSERT FULL LEGAL ENTITY NAME]

Signature: [DOCUSIGN SIGNATURE]

Name: [DOCUSIGN FULL NAME]

Title: [DOCUSIGN TITLE]

Email: [DOCUSIGN EMAIL]

Date signed: [DOCUSIGN DATE SIGNED]

### Member / Other Party

Individual or legal entity: [DOCUSIGN PARTY NAME]

If an entity, entity type and jurisdiction: [DOCUSIGN ENTITY DETAILS]

Signature: [DOCUSIGN SIGNATURE]

Name: [DOCUSIGN FULL NAME]

Title (if applicable): [DOCUSIGN TITLE]

Email: [DOCUSIGN EMAIL]

Address: [DOCUSIGN ADDRESS]

Date signed: [DOCUSIGN DATE SIGNED]

## Pre-production decisions

Remove this section from the execution copy after review.

1. Confirm the full legal name, entity type, jurisdiction, address, and authorized OSai signatory.
2. Confirm whether the agreement should remain mutual or become one-way for specific member categories.
3. Approve the Purpose, confidentiality duration, trade-secret survival, and treatment of disclosures made before signature.
4. Select governing law, venue, and any required dispute-resolution process.
5. Confirm the permitted Representative categories and whether affiliates may receive information.
6. Review the AI-service restriction, reverse-engineering restriction, archival-copy right, and equitable-relief provision.
7. Confirm applicability and wording of the 18 U.S.C. § 1833(b) notice for employees, contractors, and consultants.
8. Approve DocuSign recipient roles, fields, signing order, identity verification, electronic-record consent, completed-document delivery, and retention.
9. Align this Agreement with the Terms of Use, Privacy Policy, project agreements, access matrix, and agreement-version records.
10. Have qualified counsel in the selected jurisdiction approve the execution copy before production use.